

NOTICE TO PAY RENT OR QUIT

Please note: This notice is provided **only as an example** of a typical notice that was used in the past in some states. Many states now have certain standards that **MUST** be followed in a legal termination notice, including specific wording or content. Some states have specific standards for the look, format, wording size and type. You must also check state statutes for the correct number of days residents must be allowed to pay rent or deliver up possession, which must be stated in the notice. All this is why when preparing such a notice, you should consult your local and state landlord-tenant statutes. Or obtain a state specific legal form that complies with landlord-tenant law for your state, so that your notice will be valid and enforceable. If not, a judge may simply dismiss the case in favor of your resident. It's recommended that you seek counsel, before proceeding, if you have never gone through the steps in the legal eviction process or if you have any questions.

To: _____,

and all other residents in possession of the premises at the following address:

PLEASE TAKE NOTICE that according to the terms of your rental agreement the rent is now due and payable for the above stated address which you currently hold and occupy. Our records indicate that your rental account is delinquent in the amount itemized as follows:

Rental Period (dates) _____ Rent Due \$ _____

Rental Period (dates) _____ Rent Due \$ _____

Rental Period (dates) _____ Rent Due \$ _____

TOTAL RENT DUE \$ _____

Less partial payment of \$ _____

TOTAL BALANCE DUE of \$ _____

You are hereby required to pay said rent in full within _____ days or to remove from and deliver up possession of the above address or legal proceedings will be instituted against you to recover possession of said premises, to declare the forfeiture of the Lease or Rental Agreement under which you occupy said premises and to recover all rents due and damages, together with court costs, legal and attorney fees, according to the terms of your Lease or Rental Agreement.

Dated this _____ day of _____, 20____

Owner/Manager _____ Phone _____

PROOF OF SERVICE

I, the undersigned, being at least 18 years of age, declare under penalty of perjury that I served the above notice, of which this is a true copy, on the above-mentioned resident(s) in possession in the manner(s) indicated below:

___ On _____, 20____, I handed the notice to the resident(s) personally.

___ On _____, 20____, after attempting personal service, I handed the notice to a person of suitable age and discretion at the residence/business of the resident(s), AND I deposited a true copy in the U.S. Mail, in a sealed envelope with postage fully prepaid, addressed to the resident(s) at his/her/their place of residence (date mailed, if different from above date _____).

___ On _____, 20____, after attempting service in both manners indicated above, I posted the notice in a conspicuous place at the residence of the resident(s), AND I deposited a true copy in the U.S. Mail, in a sealed envelope with postage fully prepaid, addressed to the resident(s) at his/her/their place of residence (date mailed, if different from above date _____).

Executed on _____, 20____, at the County/City of _____

State of _____ Served by _____

RENT PAYMENT SCHEDULE WORKSHEET

Previous Balance (Prior to Current Month) \$ _____

Current Month "A" (Now Past Due) \$ _____

Late Charge - Month "A" \$ _____

Next Month "B" Rent \$ _____

Following Month "C" Rent \$ _____

TOTAL RENT DUE WITHIN NEXT 60 DAYS \$ _____

Number of Paydays in the next 60 days
(Prior to due date for month "C" rent) _____

Amount Due Each Payday
(Divide total rent due by # of paydays) \$ _____

Dates of Paydays within next 60 days time: Prior to due date for month "C"	Amount Paid	On- Yes/No
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

The resident agrees to pay rent monies due according to the above payment schedule. If the resident fails to pay amount due on or before any of the agreed dates, the owner has the right to continue the legal eviction procedure against the resident without having to serve another pay or quit notice. The resident has already been served. The resident has been given extra time to pay only as a courtesy. By granting this extension, the landlord does not waive any current or future rights granted in the rental agreement, especially as it relates to rights to terminate this agreement and eviction for non-timely payments of rents.

Resident _____ Date _____

Owner/Manager _____ Date _____

PROMISE FOR PAYMENT

Dear Owner/Management

I promise to pay you \$_____ for rent and other charges now owing on the residence which I rent from you located at_____.

_____ a) I promise to pay you the full amount due on or before the following date:
_____.

_____ b) I promise to pay you in two payments to cover the full amount due:
The first payment will be for the following amount \$_____.
It will be paid to you on or before the following date_____.

The second payment will be for the following amount \$_____.
It will be paid to you on or before the following date_____.

In order to make the payments promised to you, I expect to be receiving sufficient funds to do so from the following sources: (You have my permission to contact them and, I give my authorization to verify each of the sources listed below)

Individual/Agency/Company	Address	Phone	Amount Expected
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

If you are unable to verify that these funds are to be sent to me, or if I fail to pay as exactly as promised, I understand that you will immediately proceed to evict me, and that this promise will be used against me as evidence of my bad faith in paying what I owe.

I acknowledge that I have received a Notice to Pay or Quit as required by law to begin eviction proceedings. I understand that that Notice may show a balance owed which is different from the amount stated above, because a Notice to Pay or Quit may demand only delinquent rent. I also understand that the period mentioned in this Notice is being extended to the date(s) given above, at which time I promise to pay you all that is owed at this point. If I fail to pay on or before the promised date(s), you have the right to continue legal eviction procedures against me without having to serve me another Notice to Pay or Quit. I have already been served. I am being given the extra time to pay only as a courtesy and only this once.

Resident's Signature_____Dated _____